

Justification for Other than Full and Open Competition (JOFOC)
FCI McDowell

Pursuant to the Federal Acquisition Regulations (FAR) Subpart 6.302-1(a)(2), the Federal Bureau of Prisons (BOP) has determined the procurement of comprehensive medical services (CMS) for the Federal Correctional Institution (FCI), hereinafter referred to as “institution”, located in McDowell, West Virginia, meets the criteria established for other than full and open competition. It is further determined that only one responsible source is capable of providing services to the institution, and that such an award would prevent serious injury, financial, or other liabilities to the Government. This limitation on competition is justified as supported by the following information:

1. Identification of the agency and the contracting activity, and specific identification of the document as a "Justification for other than full and open competition."

<u>Agency:</u>	Department of Justice
<u>Contracting Activity:</u>	Federal Bureau of Prisons FCI McDowell 101 Federal Drive Welch, West Virginia 24801

2. Nature and/or description of the action being approved.

This action to be approved is for the continuation of community and institution based comprehensive medical services with “Seven Corners, Inc.” (Seven Corners). Seven Corners is the incumbent and has agreed to honor their previous Medicare benchmark rates for CMS via monthly Firm Fixed Unit Pricing purchase orders until a new CMS contract can be competitively awarded. This interim action will provide the institution the required and necessary acquisition of medical services for the inmate population. The proposed period of performance will be from July 1, 2025, through June 30, 2026, with an estimated total cost of \$654,500.00.

3. A description of the supplies or services required to meet the agency’s needs.

As part of the mission of the institution, comprehensive medical services are provided to the inmate population. In meeting the healthcare needs of the inmate population, the BOP provides essential medical, dental, and mental health services to Federal inmates. When a medical need arises that cannot be provided by the institution medical staff, referrals are made to community-based medical providers. These services include Inpatient/Outpatient Facility and Physician services, as well as Outpatient Institution Services of Optometrist and Orthopedic Surgeon.

Furthermore, due to the nature of medical services and the need to provide timely medical care to the inmate population, any delay in award is incompatible with the agency's needs.

4. An identification of the statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. § 3304(a)(1) as implemented by FAR 6.302-1, Only One Responsible Source and no other supplies or services will satisfy the agency requirements. Specifically, FAR 6.302-1(a)(2) provides for the applicability of this authority in situations "when the supplies or services required by the agency are available from only one responsible source."

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

The Field Acquisition Office (FAO) is currently conducting market research in pursuit of soliciting and awarding a CMS contract. In the interim, it is essential that the institution continues to provide medical services to the inmate population. The immediate availability of community-based healthcare services is crucial to prevent any disruption in accessing necessary medical services and to ensure the smooth operation of the institution. Typically, the transition to a new third-party administrator requires a service commencement period of 30 days. While market research has shown that comprehensive medical services are commonly available in the commercial marketplace and has identified several vendors capable of meeting the Government's needs, Seven Corners, as the incumbent, is the only provider able to ensure seamless service delivery without any lapse in performance.

The Government has determined that it is in its best interest to continue utilizing the services of Seven Corners, which is capable of providing the required medical services without delay. Seven Corners' established medical network ensures that the institution's healthcare needs are effectively met. Having been the incumbent contractor for over five years, Seven Corners consistently delivers essential medical services through its established network of local medical facilities and physicians. Furthermore, Seven Corners continues to provide various onsite outpatient services to address the Government's needs. All provider credentialing and background clearances have already been completed.

To maintain continuity of medical care for the diverse inmate population, continuing services with Seven Corners and its network of medical service providers is essential in preventing delays and disruptions in the overall mission of providing both basic and emergent medical care. Any interruption in services would result in significant harm to

the Government, adversely affecting patient care and causing operational disruptions for the inmate population.

6. **A description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and if not, which exception under 5.202 applies.**

Due to the immediate need for medical services and continuity of care, it is not practicable to solicit additional offers for this award.

In accordance with the exception at FAR 5.202(a)(11), a notice will not be publicized because the proposed contract action is made under the terms of an existing contract that was previously synopsisized in sufficient detail to comply with the requirements of FAR 5.207.

7. **A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.**

Seven Corners has agreed to continue providing services via purchase orders, at the same rates of option year four defined in contract 15812219D00000001. These rates were awarded under a competitive acquisition and were determined to be fair and reasonable in accordance with FAR 15.404-1(b)(2)(i). The Contracting Officer (CO) has analyzed the current market trend by comparing the option year four rates at the institution against historical prices paid for the same services. Both the option year four rates and the historical prices paid for the same services have been determined to be fair and reasonable. It is in the best interest of the Government to continue services with Seven Corners during this interim period until a new competitive contract can be awarded.

8. **A description of the market research conducted and the results or a statement of the reason market research was not conducted.**

This CO has conducted market research appropriate to the circumstances and legitimate needs have been identified. Information specific to the services being acquired has been thoroughly documented above. I have determined services of a type customarily available in the commercial marketplace are obtainable. The services under this contract are vital to the Government and must be continued without interruption. A review of the results of recent market research undertaken to meet similar requirements has identified multiple vendors capable of meeting the needs of the Government. However, Seven Corners, as the incumbent, is the only provider able to ensure seamless service delivery without any lapse in performance. Seven Corners is able and willing to continue services with no lapse in coverage until a new contract is awarded.

9. **Any other facts supporting the use of other than full and open competition.**

There are no other supporting facts identified.

- 10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.**

No other sources expressed, in writing, an interest in the acquisition.

- 11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.**

The acquisition of these services is necessary pending the award of a CMS contract. The requirement will be competed by the FAO. BOP anticipates a subsequent award of an indefinite delivery/requirements type contract with Firm Fixed Unit Pricing on or before July 1, 2026. The subsequent requirement will be publicized through the Governmentwide point of entry. As supported in this document, our experience indicates that a single source provider for CMS is beneficial to the agency and the inmate population we service. Once the subsequent contract is competitively awarded, further justification for other than full and open competition will not be necessary.

- 12. Contracting officer certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief.**

In accordance with FAR 6.303-2(b)(12), I hereby certify that this justification is accurate and complete to the best of my knowledge and belief. I further certify to the best of my knowledge and belief that this request is not the result of a lack of acquisition planning, or a desire to expend funds while those funds are still available.

Submitted by:

RICHARD HAMMOND

Digitally signed by RICHARD HAMMOND
Date: 2025.04.25 09:52:50 -05'00'

Richard Hammond
Field Acquisition Office

Date

I certify that the supporting data provided by the technical and requirements personnel which forms the basis for this justification is complete and accurate to the best of my knowledge and belief.

SHEA THOMAS

Digitally signed by SHEA THOMAS
Date: 2025.04.29 14:54:23 -04'00'

Shea Thomas, CMDR, Health Services Administrator
FCI McDowell

Date

Concurrence:



G. Queen, Warden
FCI McDowell

5/1/25

Date

BENJAMIN KEIM

Digitally signed by BENJAMIN KEIM
Date: 2025.05.02 11:47:17 -05'00'

Ben Keim, Section Chief, CMCS
Field Acquisition Office

Date

Approved:

KATHY COLE

Digitally signed by KATHY COLE
Date: 2025.05.06 09:35:50 -05'00'

Kathy Cole, Chief
Field Acquisition Office

Date